

GRAHAM v. CHANCE, et al

23CV46928

DEFENDANTS' DEMURRER

Plaintiff alleges eight causes of action; defendants have generally demurred to all causes of action except the fourth for battery.

A demurrer admits the truth of all material factual allegations in the complaint; thus, to defeat a demurrer, plaintiffs need only plead facts showing they may be entitled to some relief (*Keyes v. Santa Clara Valley Water Dist.* (1982) 128 Cal. App. 3d 882); for defendants to prevail on a demurrer they must establish the complaint 'has included allegations that clearly disclose some defense or bar to recovery. [Citation omitted] Thus, a demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense. [Citation omitted]" (*Casterson v. Superior Court* (2002) 101 Cal.App.4th 177, 182-183).

Plaintiff's objections to defendants' evidence presented in support of the demurrer are sustained in toto.

Plaintiff has sufficiently pled all causes of action under California's liberal pleading practice. ("If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a general demurrer" *Quelimane Co. Inc. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 38-39.) Additionally, the Court concurs with plaintiff's assertion that many of the arguments raised in the demurrer cite to irrelevant and/or inappropos code sections and the demurrer attempts to include "evidence" not germane at the pleading stage which is limited to the four corners of the pleading.

The demurrer is **OVERRULED**. Defendants to file an answer within 20 (twenty) calendar days of service of this ruling.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

HANNINK, et al. v. HERNANDEZ

23CV46522

DEFENDANT'S MOTION TO SET-ASIDE PLAINTIFFS' MOTION TO COMPEL AND COURT'S RULING RE SAME

This action arises from an alleged breach of contract relating to three loans made to defendant.

This motion is brought by the Individual In pro per whose presence in the matter is under a power of attorney she holds from the defendant. Generally, a trustee or executor who is not a lawyer cannot appear in pro per in legal proceedings to protect assets of third parties, their estate or trust "because in this capacity such trustee would be representing interests of others and would therefore be engaged in the unauthorized practice of law." (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 548). The Court cautions ZMs. Greenmoot to abstain from any further improper court appearances.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754- 6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court.

Failure to include this language in the notice is a basis for the Court to deny the motion.

In addition to this procedural shortcoming, the Court notes no legal basis is provided for defendant's claimed relief or her standing in this matter.

Based on the foregoing, the motion is DENIED on both procedural and substantive grounds.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.